

Form No.HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR**

JUDICIAL DEPARTMENT

W.P. No.1712 of 2026

Muhammad Shahid VS. The State, etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge, and that of parties of counsel, where necessary.
-----------------------------------	----------------------------------	--

21.04.2026 Mr. Muhammad Ali, Advocate with the petitioner.
Mr. Zafar Iqbal Awan, Additional Advocate General,
Punjab with Noor Hassan, SI.
Syed Razy Hassan Gillani, Advocate/legal advisor for
complainant's department with Muhammad Ali,
Assistant (legal).

Due to prohibition contained in section 45A (2) of the Punjab Food Authority Act 2011, the petitioner filed present writ petition for seeking pre-arrest bail in case FIR bearing No.120 dated 03.03.2026 registered under section 22 (1) of the Punjab Food Authority Act, 2011 at Police Station City Ahmad Purr East, District Bahawalpur.

2. The petitioner was alleged to have been subjected to a raid conducted by the Assistant Food Safety Officer, acting on confidential intelligence, at his residence on 2nd March 2026. During the operation, approximately 10,000 sachets of Gutka, an addictive substance, were reportedly recovered and seized. The confiscated items included J.M. (1 packet), One 2 One (5 packets), Suhana (19 packets), Rattan (30 packets), and Adaab (48 packets).

3. Learned counsel for the petitioner raised two principal objections. First, he questioned whether Gutka falls

within the statutory definition of “food.” Second, he challenged the authority of the Assistant Food Safety Officer to conduct a raid, particularly at the petitioner’s residence, so as to bring the matter within the jurisdiction of the Punjab Food Authority. According to him, under Section 13 of the Punjab Food Authority Act, 2011 (“the Act”), only a Food Safety Officer is empowered to carry out such raids, and even then, solely at commercial premises where products are stored for sale. He further contended that Gutka does not qualify as food; rather, it is an addictive substance containing psychotropic elements, thereby excluding it from the ambit of the Act.

4. To address these questions, it is first necessary to consider whether an Assistant Food Safety Officer is empowered to conduct a raid for the search of any product kept in violation of the Act or the rules and regulations framed thereunder, particularly within a residential premises. Section 13 of the Act expressly authorizes only a Food Safety Officer to carry out such raids. The manner of appointment of a Food Safety Officer, however, is set forth in Section 12 of the Act, which provides as follows:

12. Food Safety Officer.— (1) The Food Authority may, by notification, appoint Food Safety Officers for such areas as it may assign to them.

(2) A Food Safety Officer shall possess such qualifications as may be prescribed.

(3) Notwithstanding anything in sub-section (2), the Food Authority, in public interest, may confer the powers of a Food Safety Officer on a Government servant.

Sub-section (3) empowers the Food Authority to confer the powers of a Food Safety Officer upon any government servant. When this provision is read together with Section 14 of the

Act, which concerns the determination of the number, categories, rank, and terms and conditions of other employees of the Food Authority; Section 10(6), which authorizes the Director General to exercise the powers of a Food Safety Officer; Section 51, which deals with the general delegation of powers, and all employees as public servant under section 53 of the Act, it becomes evident that the authority and functions of a Food Safety Officer may also be exercised by an Assistant Food Safety Officer.

5. The second aspect of the question concerns the authority of an Assistant Food Safety Officer to enter the residential premises of an accused, a matter governed by Section 13(c) of the Act, which provides as follows:

(c) enter or seal any **premises** where he believes any food is prepared, preserved, packaged, stored, conveyed, distributed or sold, examine any such food and examine anything that he believes is used, or capable of being used for such preparation, preservation, packaging, storing, conveying, distribution or sale;

(Emphasis supplied)

The above clause uses the word “premises” instead of house or shop, however, section 2(t) of the Act defines ‘premises’ as under;

(t) “premises” **include** any shop, stall, hotel, restaurant, airline services, canteens, place, vehicle, **building** or tent or any other structure and any adjoining land used in connection with it and any vehicle, conveyance, vessel or aircraft where any food is sold or manufactured or stored for sale;

(Emphasis supplied)

In the solemn task of statutory construction, this Court must distinguish between terms of limitation and terms of extension. Where the legislature employs the word "includes," it serves not as an exhaustive boundary, but as a phrase of enlargement. Unlike the restrictive word "means," which confines a definition to a closed set, "includes" signals that the listed

items are merely illustrative. It is a drafting device used to ensure that specific instances are brought within the ambit of the law without prejudice to the term's natural and ordinary meaning. Consequently, the definition remains non-exhaustive and open-ended, allowing the Court to encompass other like matters that fall within the spirit and purpose of the provision. In essence, "includes" acts as an expansive bridge, extending the reach of the law beyond the specific examples provided to ensure the legislative intent is fully realized. Thus, the above definition is framed in inclusive terms and does not expressly exclude residential premises, which may reasonably be construed as falling within the broader meaning of the word "building."

6. The final objection raised by learned counsel for the petitioner concerns whether Gutka falls within the statutory definition of "food." Gutka, though a highly addictive and carcinogenic smokeless tobacco product, is not ordinarily regarded as food. Originating primarily in India and widely consumed across South Asia, it is a processed mixture of crushed areca nut (betel nut), tobacco, slaked lime, catechu, and flavorings, often marketed as a mouth freshener. It is typically consumed by placing it between the gum and cheek. Despite being sold in small, inexpensive sachets, Gutka poses grave health risks, including oral cancer, oral submucous fibrosis (restricted mouth opening), and cardiovascular disease.

Culturally, Gutka is akin to betel quid or paan, which is traditionally described as a psychoactive and stimulant preparation, often categorized as a digestive aid or mouth freshener. It contains areca nut (supari), the world's fourth most commonly used addictive substance, which acts as a mild

narcotic, particularly when combined with tobacco. Against this backdrop, it becomes necessary to examine the scope of the statutory definition of “food” under Section 2(f) of the Act, which provides as follows:

(f) “**food**” means anything used as food or drink for human consumption other than drugs, and includes—

- (i) any substance which is intended for use in the preparation of food;
- (ii) any flavouring agent or condiment;
- (iii) any colouring matter intended for use in food;
- (iv) chewing gum, confectionary and other products of like nature;
- (v) water in any form including ice, intended for human consumption or for use in the composition or preparation of food; and
- (vi) any other thing prescribed as food;

The foregoing definition does not expressly include Gutka within the category of food. However, clause (vi) extends the scope to “any other thing” prescribed as food. In this context, Section 2(u) of the Act clarifies that the term “prescribed” refers to matters determined by the rules or regulations framed under the Act.

7. In response to the query raised by this Court, the learned Legal Advisor of the Department submitted that, in exercise of the powers conferred under Section 57 of the Act, the Authority promulgated the Punjab Pure Food Regulations, 2018, through a Notification dated 4 June 2018. He further stated that under paragraph 11.1 of the said Regulations, Gutka has been expressly included among the banned commodities. Accordingly, the Assistant Food Safety Officer was fully justified in conducting the raid and effecting recovery of the prohibited articles.

8. A perusal of the above Regulations reveals that they prohibit the manufacture, sale, storage, marketing, and purchase of the following commodities:

Sr. No.	Banned Commodities
1.	Monosodium Glutamate
2.	Chooran
3.	Gutka
4.	Shellac E 904 (color)
5.	Carmines E-120 (color)
6.	Partially hydrogenated vegetable oil as a product and as an ingredient thereof in any food from July 2020 onwards.
7.	Dairy drink from 05-12-2018 onwards.
8.	The use Waste oil and rendered animal fat for any purpose other than Biodiesel Production is banned.
9.	Calcium Carbide as a ripening agent
10.	Sale of loose spices from January, 2019
11.	Sale of loose oils and fats
12.	All Red Category items/commodities for sale in the educational institutions.
13.	Rotten/Hatchery eggs banned for storage and consumption and any usage as food ingredient and raw material thereof.

Thus, Gutka, falling within the category of “any other thing” prescribed as food under the aforesaid Regulations, and in light of the discussion regarding the authority of an Assistant Food Safety Officer to conduct raids as well as the statutory definition of “premises,” squarely brings the matter within the jurisdiction of the Punjab Food Authority. Consequently, the Authority is duly empowered to take action against violators such as the petitioner, even where the product is stored on a large scale in any place, including a residential house, for which burden of proof is on the accused that it was not kept for sale.

9. At present, sufficient material is available on the record to establish a connection between the petitioner and the commission of the alleged offence. The presence of the petitioner is required for the purposes of investigation. The

record does not suggest that his implication is false or motivated. It is well-settled that the concession of pre-arrest bail is an extraordinary relief, intended only for innocent persons where the intended arrest is demonstrably actuated by mala fide on the part of the complainant or the police. In the present case, I find no evidence of malice or ulterior motive on the part of the complainant to falsely implicate the petitioner. Accordingly, the petitioner is not entitled to the extraordinary relief of pre-arrest bail as sought. Reliance is placed on cases reported as “*GULSHAN ALI SOLANGI and others versus The STATE through P.G. Sindh*” (2020 SCMR 249). In this respect, reliance is further placed in case reported as “*AHTISHAM ALI versus The STATE*” (2023 SCMR 975), it has been held that:-

“It is well settled exposition of law that the grant of pre-arrest bail is an extraordinary relief which may be granted in extraordinary situations to protect the liberty of innocent persons in cases lodged with mala fide intention to harass the person with ulterior motives. By all means, while applying for pre-arrest bail, the petitioner has to satisfy the Court with regard to the basic conditions quantified under section 497 of the Code of Criminal Procedure, 1898 (“Cr.P.C”) vis-à-vis the existence of reasonable grounds to confide that he is not guilty of the offence alleged against him and the case is one of further inquiry.”

10. In view of the above, the instant petition stands **dismissed** and ad-interim bail already granted to the petitioner is hereby **recalled**.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Approved For Reporting

Judge

Signed on 29.04.2026

M. Umar*